

		the liability of such party exceeds the amount of such third party insurance coverage.” (<i>Id.</i>, Exh. A, § 9.1.) Defendant Conifer asserts that, because there has been no settlement or judgment in this case, whether Defendant FCMG’s liability exceeds the amount of third party insurance coverage cannot be determined. However, it would be preferable to allow Defendant FCMG to file the Proposed Cross-Complaint and then for Defendant Conifer to file a motion to compel arbitration and/or a demurrer, motion for judgment on the pleadings, or motion for summary judgment. (See <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [“[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”].) In this way, the court may address the issue squarely on the merits. Therefore, the court will grant the motion for leave to file a cross-complaint. Defendant FCMG shall give notice of this ruling.
4	ADM Capital Singapore Pte. Ltd vs. Nath 30-2022-01252773	<u>Motion to Be Relieved as Counsel</u> Counsel Jeffer Mangels & Mitchell LLP’s Motion to Be Relieved as Counsel for Plaintiff ADM Capital Singapore Pte. Ltd. is GRANTED. Counsel Jeffer Mangels & Mitchell LLP is ORDERED to submit to this court a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Jeffer Mangels & Mitchell LLP is ORDERED to serve Plaintiff ADM Capital Singapore Pte. Ltd. with the signed Form MC-053, notice of the Order to Show Cause hearing set forth below, and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d).

		Counsel Jeffer Mangels & Mitchell LLP shall be relieved as counsel of record for Plaintiff ADM Capital Singapore Pte. Ltd. effective upon the filing of a proof of service showing timely service of the signed Form MC-053, notice of the Order to Show Cause hearing, and notice of this ruling. The Court SETS a hearing on an Order to Show Cause re: Dismissing the Complaint for Failure to Retain Counsel on September 24, 2026, at 10:00 am in Department N15. <u>Pending Motion</u> Counsel Jeffer Mangels & Mitchell LLP (Counsel) moves to be relieved as counsel for Plaintiff ADM Capital Singapore Pte. Ltd.. <u>Standard to Be Relieved as Counsel</u> "The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.) The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).) No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).) However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.) In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i>
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		(form MC-053) and must be lodged with the court with the moving papers.” (Cal. Rules of Court, rule 3.1362(e), <i>italics original</i>.) Motions to be relieved as counsel “must be served on the client and on all other parties who have appeared in the case” and service must be made by “personal service, electronic service, or mail.” (Cal. Rules of Court, rule 3.1362(d).) If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).) “As used in this rule, ‘current’ means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client’s last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current.” (<i>Ibid.</i>) If the motion is served by electronic mail, “it must be accompanied by a declaration stating that the electronic service address is the client’s current electronic service address.” (Cal. Rules of Court, rule 3.1362(d)(2).) The motion may be brought on various grounds, some of which include the client’s failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client’s insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.) However, under the Rules of Professional Conduct, “a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other
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		counsel, and complying with paragraph (e).” (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.) Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in “undue prejudice to the client’s interests,” (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or “an unreasonable disruption of the orderly processes of justice,” (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney’s request to withdraw “where such withdrawal would work an injustice or cause undue delay in the proceeding”. (<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>) In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail at the client’s last known address and confirming within the last 30 days that the address is the client’s current address. Counsel also has declared a justifiable reason to be relieved as counsel — the failure of the client to respond to communications from Counsel despite multiple attempts to contact the client. In addition, there are no substantive hearings on calendar and no trial has been set. Thus, Plaintiff ADM Capital Singapore Pte. Ltd. will have sufficient time to find new counsel and will not be unduly prejudiced in its ability to litigate the case. In any case, no opposition has been filed setting forth prejudice to Plaintiff ADM Capital Singapore Pte. Ltd. or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].) Therefore, the court will grant the motion to be relieved as counsel. However, Plaintiff ADM Capital Singapore Pte. Ltd. is a corporation, limited liability company, or other artificial legal entity that cannot represent itself and must retain counsel to act on its behalf in court. (See <i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284 fn.5; <i>Rogers v. Sonoma</i>
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		<i>County Municipal Court</i> (1988) 197 Cal.App.3d 1314, 1318.) While the ban on self-represented artificial legal entities does not prevent the court from granting the motion to withdraw, it does place pressure on Plaintiff ADM Capital Singapore Pte. Ltd. to obtain new counsel or risk forfeiting important rights through non-representation, such as dismissal of the action or having a default entered. (See <i>Rogers v. Sonoma County Municipal Court</i>, <i>supra</i>, 197 Cal.App.3d at p. 1318; <i>Ferruzzo v. Superior Court</i> (1980) 104 Cal.App.3d 501, 504.) Therefore, it is incumbent upon the court and Counsel to advise the Plaintiff ADM Capital Singapore Pte. Ltd. or the representatives of Plaintiff ADM Capital Singapore Pte. Ltd. of the necessity of obtaining representation and to ensure that they obtain representation. (See <i>Rogers v. Sonoma County Municipal Court</i>, <i>supra</i>, 197 Cal.App.3d at p. 1318.) The court will issue an order to show cause re: dismissing the complaint for failure to retain counsel, and will order that Counsel serve Plaintiff ADM Capital Singapore Pte. Ltd. with the order relieving counsel, notice of the order to show cause re: dismissing the complaint for failure to retain counsel, and notice of this ruling. Counsel shall give notice of this ruling in the manner ordered by the court.
5	Khajavi vs. 101 Visitation Solutions, LLC 30-2023-01329984	<u>Motion for Sanctions</u> Plaintiff Dara M. Khajavi's Motion for Sanctions and Based on Spoliation of Evidence and Misuse of the Discovery Process is DENIED. <u>Pending Motion</u> Plaintiff Dara M. Khajavi moves for issue sanctions and evidentiary sanction against Defendant Leyla Kabban (Defendant Kabban). <u>Standard for Discovery Sanctions</u> The trial court has expansive authority over discovery issues. (<i>Lopez v. Watchtower Bible &</i>